

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: September 25, 2023

Time: 2:00PM

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#	Case Name	Tentative
1	Aska Sakan, Inc. v. Ramadan Mohamed Omar aka Mohamed Ben Ramadan	Plaintiff Aska Sakan, Inc.'s ("Plaintiff") motion for terminating, issue, evidence, and/or monetary sanctions against Defendant Mohamed Omar Ramadan ("Defendant") is DENIED. Sanctions are warranted when there are "[m]isuses of the discovery process," such as "[f]ailing to respond or to submit to an authorized method of discovery" or "[d]isobeying a court order to provide discovery." (Code Civ. Proc., §§ 2023.010; 2023.030.) Code of Civil Procedure sections 2030.290(c) and 2031.300(c) provide that if a party fails to obey an order compelling discovery responses, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction, and/or monetary sanctions. "Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." (<i>Williams v. Russ</i> (2008) 167 Cal.App.4th 1215, 1223.)

		Plaintiff asks for terminating, issue and evidence sanctions against Defendant for his failure to obey the Court's March 6, 2023, and March 13, 2023, orders to provide further discovery responses. The Opposition shows that on June 20, 2023, and September 11, 2023, Defendant served supplemental responses in compliance with the Court's discovery order. (See Exhibits 1-4 to Opposition.) The Opposition also reflects that Defendant paid the monetary sanctions required by the discovery order on or about July 3, 2023. (Declaration of Mark S. Martinez, ¶ 11; Declaration of Mohamed Omar Ramadan, ¶ 2 and Exhibit 7 thereto.) The Opposition and supporting papers thus show that Defendant has complied with his discovery obligations pursuant to the Court's order. Further, although Defendant failed to timely obey the Court's discovery order, the evidence does not establish that the failure was willful or that Defendant has otherwise engaged in a pattern of willful discovery abuse. Rather, the failure to timely respond was due to former counsel's inadvertence and neglect. (Declaration of Mark S. Martinez, ¶¶ 6-7, 9.) Plaintiff submitted no reply and thus raises no argument to dispute the foregoing. Accordingly, the motion for terminating, issue and evidence sanctions is DENIED. Plaintiff also requests monetary sanctions against Defendant and his counsel for Defendant's failure to obey the Court's discovery order. The Court finds monetary sanctions are not warranted here as Plaintiff filed its sanctions motion without making any attempt to contact Defendant's former counsel about the tardy responses. (Declaration of Mark S. Martinez, ¶ 8.) Although a meet and confer is not required for this motion, given Mr. Martinez's statement that he inadvertently failed to timely serve the supplemental responses and that he would have remedied the situation had he been contacted by Plaintiff's counsel (<i>see id.</i>), this motion could likely have been avoided had Plaintiff simply inquired from counsel about the responses prior to filing the motion. Thus, the motion for monetary sanctions is DENIED. Counsel for Defendant is to give notice of this ruling.
2	Balboa Capital Corporation vs. United Plumbing and Drain, Inc.	Defendants United Plumbing And Drain, Inc. ("United" individually) and Milivoje Balesevic's ("Balesevic" individually; "Defendants" together) Motion to Set Aside Default and Default Judgment ("Motion") is GRANTED. The court may relieve a party from a default or default judgment when service of a summons has not resulted in actual notice to the party. (Civ. Proc. Code § 473.5(a).) "[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (<i>Dill v. Berquist Constr. Co.</i> (1994) 24 Cal. App. 4th 1426, 1444 ("<i>Dill</i>").) "A motion to vacate a judgment on the ground that it is void is timely if made within a reasonable time (8 Witkin, Cal.Procedure, supra, Attack on Judgment in Trial Court, § 186, pp. 587-588), which has been